IN THE NATIONAL COMPANY LAW TRIBUNAL, DIVISION BENCH - II, CHENNAI

CP (CAA)/23(CHE)/2025
In
CA (CAA)/18(CHE)/2025

(Filed under Sections 230 to 232 of the Companies Act, 2013)

In the matter of Scheme of Arrangement and Amalgamation among M/s. Indcon Structurals Private Limited (Demerged Company) and M/s. Vimra Infra Private Limited (Resulting Company) and their respective Shareholders and Creditors and their respective Shareholders

INDCON STRUCTURALS PRIVATE LIMITED,
(CIN: U26960TNl 984PTCOl 1271),
Having its Registered Office at
2nd Floor, St.Thomas Building, 150, Luz Church Road,
Mylapore, Chennai – 600 004.
Represented by its director, Mr. D.P. Padmanabhan.

... 1st Petitioner / Transferor Company

With

VIMRA INFRA PRIVATE LIMITED,
(CIN: U68200TN2018PTC123533),
Having its Registered Office at
Old No. 14, New No. 19, Wheatcrofts Road,
Nungambakkam, Chennai – 600 034.
Represented by its director, Mrs. Sudha Srinivasan

... 2nd Petitioner / Transferee Company

Order Pronounced on ***09.12.2025***

CORAM

SHRI. JYOTI KUMAR TRIPATHI, MEMBER (JUDICIAL)
SHRI. RAVICHANDRAN RAMASAMY, MEMBER (TECHNICAL)

Present: -

For Petitioners	*: Preeti Mohan Sagarika Shankar Sahana Priya Satish Nandita Krishnan, Advocates*
For Regional Director	*: Avinash Krishnan Ravi, Advocate*
For Income Tax Dept.	*: Rajkumar Jhabakh, Advocate*

ORDER

(Hearing Conducted though Hybrid Mode)

1. This Company Petition has been filed by **INDCON STRUCTURALS PRIVATE LIMITED** *(hereinafter referred as 1st Petitioner Company)* and **VIMRA INFRA PRIVATE LIMITED** *(hereinafter referred as 2nd Petitioner Company)* under section 230 - 232 of the Companies Act, 2013, and other applicable provisions of the Companies Act, 2013 read with Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 (for brevity 'the Rules') for approval of the Scheme of Arrangement (hereinafter referred to as the '**SCHEME'**) proposed between the Petitioners Company.

2. Affidavit have been filed in support of the petitions sworn in by **Mr. D. P. Padmanabhan** for the 1st Petitioner Company and **Mrs. Sudha Srinivasan** for the 2nd Petitioner Company in the capacity of Authorised Representative. Corresponding Extracts of Board Resolutions dated 25.03.2024 are placed on record.

3. **1ST MOTION APPLICATION**

The Petitioner Companies had filed First Motion Application vide CA(CAA)/18(CHE)/2025 and sought directions for Dispensation/ Convening the meeting of its Members/ Shareholders and Creditors regarding approval of the proposed Scheme. Based on the submissions, this Tribunal vide Order dated 28.03.2025 ordered for dispensation of the meetings of Equity Shareholders/ Members, Secured & Unsecured Creditors of the Petitioner Companies.

4. **SCHEME SUMMARY**

The Scheme provides for the Arrangement of **INDCON STRUCTURALS PRIVATE LIMITED** with **VIMRA INFRA PRIVATE LIMITED,**

their respective Shareholders and Creditors. Both the Petitioner Companies come under the jurisdiction of this Tribunal.

5. **RATIONALE OF THE SCHEME**

The rationale and benefits of the Scheme are briefed in Clause 4 of the Preamble of the Scheme as follows,

> *"The reasons and rationale underlying the Scheme specific to each of the concerned Companies, which would make it beneficial for the Companies involved, and their respective shareholders are as follows:*
> *a. The Demerger would enable the segregation of the Manufacturing and Real Estate Undertakings, with each of these businesses having their own independent requirements, strategies, focus and objectives.*
> *b. The Demerger of the Real Estate Undertaking will bring greater and more enhanced focus to the management of the Manufacturing Undertaking and Real Estate Undertaking(s), thereby facilitating the efficient exploitation of opportunities for each of these businesses.*
> *c. The Manufacturing Undertaking has enjoyed a significant growth in sales and scale of operations over the last few years driven by its foray into new product segments. The Manufacturing Undertaking has also developed a focus on diverse geographical territories, with considerable growth in the States of Karnataka, Telangana and Andhra Pradesh. This significant increase in scale, foray into newer product segments and focus on diverse geographical territories, can be harnessed to achieve larger scale and profitability, with the Demerged Company directing its focus to the needs and potential of the Manufacturing Undertaking.*
> *d. The vesting of the Real Estate Undertaking with the Resulting Company will enable the shareholders to unlock and realize the true value of the Real Estate Undertaking by carrying on such business through a separate entity with greater focus and attention on such specific business and its distinct needs, rather than as an adjunct to the Manufacturing. Undertaking, with tailor made strategies for operations and growth of the Real Estate Undertaking, provide greater visibility and a distinct brand identity to such line of business.*

e. The assets of the Real Estate Undertaking are situated in a rapidly urbanized part of the city with demographic and economic changes presenting business opportunities to develop industrial real estate with a multitude of applications including without limitation, warehouses, data centres and automobile service centres. The Resulting Company can focus better on achieving these outcomes, with its experience and focus on the real estate sector.

f. The proposed demerger of the Real Estate Undertaking is expected to align management initiatives and incentives with the performances of the underlying businesses more closely, which is likely to benefit the shareholders of the respective Companies.

g. The business of real estate being a specialized line of business, involving a different set of skills and management objectives from that required for manufacturing, it would be appropriate for the same to be carried out through a separate entity, to enable the effective and profitable exploitation of the same.

h. The transfer and vesting of the demerged undertaking of the Demerged Company to the Resulting Company through this scheme is with a view to unlock the economic value of both the Companies.

i. The proposed Demerger will enable the carrying on of each line of business in a more efficient, streamlined and organized fashion, with better utilization of resources attracting professional talent conducive to each line of business, and more efficient utilization of resources."

It is stated that the Board of Directors of both the Petitioner Companies have proposed the Scheme of Arrangement. This Scheme provides for various other matters consequential or otherwise integrally connected herewith.

6. In the second motion Petition filed by the Petitioner Companies, this Tribunal vide order dated 05.05.2025 directed the Petitioner Companies to issue notice to the Statutory / Regulatory Authorities concerned as well as directed to issue paper publication.

7. In compliance with the said directions issued by this Tribunal, the Petitioner Companies effected paper publications in ***"Trinity Mirror"*** in English (All India Edition) and ***"Makkal Kural"*** in Tamil (Tamil Nadu Edition) on 16.05.2025. The notices were also served to

(i) Regional Director, Southern Region, Chennai,

(ii) Registrar of Companies Chennai,

(iii) Income Tax Department and other regulators.

Pursuant to the service of notice of the petitions, the following statutory authorities have responded.

8. **STATUTORY / REGULATORY AUTHORITIES**

8.1. REGIONAL DIRECTOR

8.1.1. The Regional Director (RD), Southern Region to whom the notice was served on 13.05.2025, has filed its report on 12.08.2025 and has expressed its 'Observations' and 'No Objection' to the Scheme as follows,

> *"3. That as per Clause 1(d) of Part 1 of the Scheme provides the Appointed Date mean 15 December 2024 or such other date as decided pursuant to the terms hereof.*
>
> *4. That as per Chartered Accountant's certificate, there are 2 (Two) Equity Shareholders in the Demerger Company and Resulting company respectively, consents by way of Affidavit have been obtained and this Tribunal vide its order dated 28.03.2025 in CA(CAA)/18/(CHE)2025, ordered that the necessity to convene and holding a meeting of equity shareholders of Demerged and Resulting Company is dispensed with, since 100 % value of consent has been obtained by way of affidavit and placed on record.*
>
> *5. That as per Chartered Accountant's certificate, there is 1 (one) Secured Creditor in Demerging company. However, on 11.01.2025, subsequent to the certificate issued by the Chartered Accountant, the amounts due to the secured creditor has been paid off by the Demerging company is placed*

on record and this Hon'ble Tribunal vide order dated 28.03.2025 in CA(CAA)/18/(CHE)/2025 has ordered that the necessity to convene and hold a meeting does not arise.

6. That as per Chartered Accountant's certificate, there are NIL Secured Creditors in the Resulting Company and this Hon'ble Tribunal vide order dated 28.03.2025 in CA(CAA)/18/(CHE)/2025 ordered that necessity of holding a meeting does not arise.

7. That as per Chartered Accountant's certificate, there was 56 (Fifty-Six) Unsecured Creditors in Demerging Company. However, on 31.01.2025, subsequent to the certificate issued by the Chartered Accountant, the amount due to the Unsecured Creditors has been paid off by Demerging company is placed on record and this Tribunal vide order dated 28.03.2025 in CA(CAA)/18/(CHE)2025 has ordered that the necessity to convene and hold a meeting does not arise.

8. That as per Chartered Accountant's certificate, there was 1 (one) Unsecured Creditor in the Resulting Company. However, on 10.01.2025, subsequent to the certificate issued by the Chartered Accountant, the amount due to the unsecured creditor has been paid off by the Resulting Company is placed on record and this Tribunal vide order dated 28.03.2025 in CA(CAA)/18/(CHE)2025 has ordered that necessity to convene and hold a meeting does not arise.

…

10. That as per Clause 10(a) of Part-III of the Scheme becoming effective, in consideration for the demerger, transfer and vesting of the Real Estate Undertaking of the Demerged Company into the Resulting Company, in terms of this Scheme, the shareholders of the Demerged Company, whose name are reflected in the Register of Members of the Demerged Company as on the Record Date, will be entitled to be allotted shares in the following manner:

"For every 1 (one) fully paid-up equity shares of Rs. 100/- each, held in the Demerged Company, the shareholders of Demerged Company will be

entitled to 10 (Ten) fully paid equity shares of Rs. 10/- each in the Resulting Company".

Valuation Report dated 02.01.2025 Issued by the Registered valuer is attached along with the Petition.

14. That as per the ROC report, the Statutory Auditor has certified that the Demerger company has no Secured Creditors. However, as per MCA Portal, there is one Active Charge created with TIIC (The Tamil Nadu Industrial Investment Corporation Limited) amounting to Rs.13,50,000/- which is pending against the Company. In this regard, ROC has sought clarification vide letter dated 10.07.2025 for which the company vide reply dated 23.07.2025 has stated that the charge was created on 09th May 1985 and it was fully satisfied during the year 1993-94. The company may be directed to submit the copy of Form No.17 (Satisfaction of Charge) along with Auditor's Certificate for substantiate claim of "Nil" Secured Creditors and also may be directed to undertake to make necessary application for rectification/ satisfaction of said register of charges with the Registrar of Companies, Chennai.

15. That Petitioners Companies may be directed to undertake to comply with the provisions of Section 240 of the Companies Act, 2013 and Section 232(3)(i) of the Companies Act, 2013.

16. That the Resulting Company may be directed to file an amended Memorandum of Association containing, amendment to the capital clause for record purposes with the Registrar of Companies.

17. That the main objective of the Resulting Company Is to carry business of Real Estate developers. Therefore, the company may be directed to submit NOC/acknowledgment of service of notice to the sectoral regulator i.e. RERA (Real Estate Regulatory Authority).

18. The scheme of Amalgamation filed with the application has been examined and submissions made more particularly at para 14, 15, 16 & 17 is placed and pray that this Hon'ble Tribunal may dispose of the matter on merits and pass such order/orders as deemed fit and proper."

8.2. INCOME TAX DEPARTMENT

8.2.1. The Income Tax Department to whom the notice was served on 13.05.2025, has filed its report on 11.07.2025 for Petitioner No.2 company and on 03.09.2025 for the Petitioner No.1 Company and has expressed its 'Observations' and 'No Objection' to the Scheme as follows:

> *"2. In addition to the above and without prejudice to the objections in the letter attached, it is submitted that the requirement to send the notice to the concerned department is a procedural requirement and as such does not impact the right of the Department to proceed in accordance with the provisions of the Income Tax Act, 1961. Therefore, it is submitted that this Hon'ble Tribunal, may take the objections on record without prejudice to the rights of the Department to take all appropriate proceedings under the provisions of the Income Tax Act, 1961 to protect the interest of the Government revenue including the right to reopen the assessment. Further it is submitted that by filing of this Memo and the report of the Assessing Officer, the Income Tax Department shall not have deemed to waive its rights to undertake all proceedings under the Income Tax Act, 1961.*
>
> *3. Reliance is placed on the judgment of the Supreme Court in* ***Marshall Sons & Co India Ltd Vs Income Tax Officer (AIR1997SC1763 & MANU/SC/0407/1997)****, wherein the Hon'ble Court has held in para 17 of its Judgement as under:*
>
> > *"We, however, make it clear that we have not expressed any opinion on the plea of the learned Counsel for the Revenue that the amalgamation itself is a device designed to evade the taxes legitimately payable by the subsidiary company. If the Income Tax authorities think that, they are entitled to raise this question in the proceedings under the Income Tax Act, it is open to them to do so by way of a separate proceeding according to law." (emphasis is ours)*
>
> *In line with the judgment of Hon'ble Supreme Court, it is stated that the Income Tax Department therefore reserves their right to proceed against the Petitioner Companies through independent proceedings under the*

provisions of the Income Tax and it is reiterated that filing of the present memo shall not in any manner amount to waiving its rights to proceed against the Petitioner Companies and pass orders in accordance with law.

It is prayed that this Hon'ble Tribunal maybe pleased to take the memo and the letter on record and consider the same as the representation of the Income Tax Department as per Section 230 of the Companies Act, 2013 and pass such other order(s) as this Hon'ble Tribunal may think fit in the facts and circumstances of the case."

8.2.2. It is stated that in the present scheme of Arrangement even though the Demerged Company gets dissolved, the liabilities of the same will be delved upon this Petitioner company No.2 and therefore the Income Tax Department can proceed with their proceedings if any and approval of this Scheme does not cause any prejudice.

8.4. REGISTRAR OF COMPANIES

8.4.1. The Registrar of Companies to whom the notice was served on 13.05.2025, has filed its report dated 06.08.2025 in Para 13,14 of the Regional Director's Report dated 12.08.2025, and has expressed its 'Observations' and 'No Objection' to the Scheme as follows:

"*13. That as per the report dated 06.08.2025 of ROC, Chennai, the Demerger Company and Resulting Company is regular in filing its Annual returns and Balance sheet up-to financial year 2023-24. No prosecution/ inquiry/ inspection / investigation/ complaints are pending against the Demerger Company.*

14. That as per the ROC report, the Statutory Auditor has certified that the Demerger company has no Secured Creditors. However, as per MCA Portal, there is one Active Charge created with TIIC (The Tamil Nadu Industrial Investment Corporation Limited) amounting to Rs.13,50,000/- which is pending against the Company. In this regard, ROC has sought clarification vide letter dated 10.07.2025 for which the company vide reply

dated 23.07.2025 has stated that the charge was created on 09th May 1985 and it was fully satisfied during the year 1993-94. The company may be directed to submit the copy of Form No.17 (Satisfaction of Charge) along with Auditor's Certificate for substantiate claim of "Nil" Secured Creditors and also may be directed to undertake to make necessary application for rectification/ satisfaction of said register of charges with the Registrar of Companies, Chennai."

8.5. REPLY TO THE STATUTORY OBJECTIONS

The Petitioner companies have filed their response to the statutory objections and the same is extracted below:

"Reply to the Regional Director:

12	Para 14, Page 5	States that as per MCA portal, there is one Active Charge created with TIIC amounting to Rs. 13,50,000/- which is pending against the Demerged Company. In this regard ROC sought clarification vide letter dated 10.07.2025, for which the Demerged Company replied that the charge was created on 9th May, 1985 and was fully satisfied during the year 1993-94. The RD directs the Demerged Company to submit the copy of Form No. 17 (satisfaction of charge) along with auditors certificate for substantiating the claim of "Nil" secured creditors and also may be directed to make necessary application for rectification/satisfaction of said register of charges with the Registrar of Companies, Chennai.	The Demerged Company submits that the charge originally created in favour of The Tamil Nadu Industrial Investment Corporation Ltd. for a sum of Rs.13,50,000/- on 09.05.1985, was duly and completely satisfied on 28.03.1994, and a Form 17 was also filed with e the Registrar of Companies, Tamil Nadu, Chennai on 31.03.1994 and registered on 07.04.1994. During the transition from physical filing to e-filing, the MCA system erroneously created Charge ID 90301582 in respect of this satisfied charge. The Demerged Company submits that a copy of Form 17 was available in the D File maintained by the ROC, Chennai, as per inspection dated 04.08.2025 vide UU1096683, though the Demerged Company's own copy was not traceable owing to the lapse of over 30 years, from the time the charge stood satisfied. Accordingly, the Demerged Company filed a Change Request Form (CRF) dated 18.08.2025 seeking removal of the said charge from MCA records and updating the status as "satisfied" as on 28.03.1994, based on the copy available with the ROC.

			The Change Request Form (CRF) as addressed by the Company is enclosed herewith as "**Annexure E**". Pursuant to this change request, the details as reflected in the records of the MCA have been corrected, and the updated MCA Master Data as on 09.09.2025 is annexed herewith as "**Annexure F**". The Master Data would clearly show that the charge stood satisfied as on 28/3/1994, and that from that date, there has been no subsisting charge in favour of TIIC.
13	**Para 15, Page 6**	States that the Petitioner Companies have to undertake to comply with the provisions of Section 240 and Section 232(3)(i) of the Companies Act, 2013	The Petitioner Companies submit that Section 240 only deals with liability in respect of offences committed by officers in default, of a 'transferor company', prior to a merger, amalgamation, or acquisition. The present Scheme does not pertain to a merger, amalgamation, or acquisition for the provision to apply, and in any case there are no offences whatsoever committed by the officers of the Demerged Company. However, and in terms of the Scheme, the demerger does not in way seek to affect or impact any liabilities or legal proceedings. In so far as Section 232(3)(i) of the Companies Act, 2013 is concerned, the said provision deals with a situation where the transferor company is dissolved in terms of a scheme, and provides for the fee paid by such company on its authorized capital, being set off against any fees payable by the transferee company on its authorized capital subsequent to the amalgamation.

			In the present case, the Scheme does not contemplate an amalgamation, or the dissolution of any company. Neither does the Scheme seek the setting off, in respect of any fees paid on the authorized capital, and consequently, the question of complying with Section 232(3)(i), may not arise.
14	**Para 16, Page 6**	States that the Resulting Company has to undertake to file the amended MOA containing the amendment to the capital clause with the ROC.	The Resulting Company submits that the Scheme does not provide for any changes to the capital, and consequently the amendment of the capital clause or the filing of an amended MoA for this purpose, does not arise.
15	**Para 17, Page 6**	States that the Resulting Company has to submit NOC/acknowledgement of service of notice to the sectoral regulator i.e RERA.	The Resulting Company submits that while it is correct that the 'Real Estate Undertaking' of the Demerged Company is sought to be demerged to and vested in the Resulting Company in terms of the Scheme, the question or providing notice of the Scheme to the RERA does not arise as the said authority is only concerned with the registration of 'real estate projects' as defined in Section 2(zn) of The Real Estate (Regulation & Development) Act, 2016. Consequently, any such registration with RERA will arise only at the time the Resulting Company chooses to commence a real estate project within the meaning of the Act, and the same not being a proposal contained in the Scheme, the necessity to notify RERA as a sectoral regulator does not arise.
16	**Para 18, Page 6**	States that the scheme of amalgamation filed with the application has been examined and it has been decided not to make any objection to the Scheme except for the observations in paras 14, 15, 16 & 17 and, it is therefore prayed that this Hon'ble Tribunal may dispose of the matter on merits and pass such orders as deemed fit and proper.	The Petitioner Companies have responded to the observations contained in Paras 14-17 of the Report as already stated above, and the same may be taken on record.

Reply to the Income Tax Authorities:

For Petitioner No.1 Company-

4.	**Para 5, Page 2**	The IT Dept conveys its no objection to the present Scheme of Demerger subject to the condition that the Scheme of arrangement should not flout any provisions of the Income Tax Act, 1961 and Income Tax Rules, 1962 and subject to fulfilment of conditions specified in scheme of demerger. If any part of the scheme is found to be repugnant to the above laws, the same will be treated as *void ab initio*.	Petitioner Companies confirm that the Scheme is in compliance with the provisions of the Income Tax Act, 1961, more specifically, Section 2(19AA) of the Act, and the Income Tax Rules, 1962, and the Scheme also affirms this position.
5.	**Para 6, Page 2**	The IT Dept states that continuation of the proceedings of assessment or recovery or any other statutory action will be subject to the provisions of the Income Tax Act and the assessee company will not quote the approved Scheme as a ground to oppose such continuation of the proceedings. In the event of failure of the assessee to notify the department of the approval of the Scheme, the same will preclude the assessee companies from raising any technical grounds on the validity of the proceedings	The Petitioner No.1 has taken note of this observation.
6.	**Para 7, Page 2**	States that any credit in respect of which tax at source was deducted/collected on inter-company transactions will be dealt with under the extant provisions of the Income Tax Act depending on the date of remittance of such TDS/TCS remitted into the government account.	The Petitioner Companies have noted the observation and confirm that they will follow the extant provisions of the Income Tax Act.

For Petitioner No.2 Company-

4.	**Para 5, Page 2**	The IT Dept conveys its no objection to the present Scheme subject to the condition that the Scheme of arrangement is in compliance with the provisions of the Income Tax Act, 1961 and Income Tax Rules, 1962 and if any part of the scheme is found to be repugnant to the above laws, the same will be treated as *void ab initio*.	Petitioner Companies confirm that the Scheme is in compliance with the provisions of the Income Tax Act, 1961, more specifically, Section 2(19AA) of the Act, and the Income Tax Rules, 1962, and the Scheme also affirms this position.

		The Department also requests that the Resulting Company- Petitioner Company No.2 shall discharge all its responsibilities and liabilities emanating in respect of the pending/completed/likely to arise.	The Petitioner No.2 duly undertakes to discharge all their responsibilities and liabilities emanating in respect of the proceedings pending/completed/likely to arise, and the responsibilities and liabilities of the Petitioner No. 2 are not sought to be impacted in any way by the Scheme.
5.	**Para 6, Page 2**	The IT Dept states that continuation of the proceedings of assessment or recovery or any other statutory action will be subject to the provisions of the Income Tax Act and the assessee company will not quote the approved Scheme as a ground to oppose such continuation of the proceedings. In the event of failure of the assessee to notify the department of the approval of the Scheme, the same will preclude the assessee companies from raising any technical grounds on the validity of the proceedings	The Petitioner No.2 has taken note of this observation.
6.	**Para 7, Page 2**	States that the refund of tax which has already been determined but not issued either to the demerged company/resulting company will be issued in the name of respective companies only, as per the extant technical limitations of the system. Further, also states that the resulting company shall ensure that no technical glitches arise due to any name mismatch by changing the name of the account or closure of the bank accounts. The department is not liable to pay any interest due to the delay attributable to the assessee in informing such changes. The assessee will make all such claims in respect of grant of refund/interest on refund to the Income Tax Authorities only. The petitioners will not claim any right under this scheme in respect of calculation of any period of delay attributable to the assessee while granting interest u/s 244A of the Act.	The Petitioner Companies have taken note of the observations made in this regard, and confirm that they will ensure that no technical glitches that arise due to any name mismatch, or for other reasons attributable to them.

7.	Para 8, Page 2	States that any credit in respect of which tax at source was deducted/collected on inter-company transactions will be dealt with under the extant provisions of the Income Tax Act depending on the date of remittance of such TDS/TCS remitted into the government account.	The Petitioner Companies have noted the observation and confirm that they will follow the extant provisions of the Income Tax Act.
8.	Para 9, Page 2	IT Dept states that there is an outstanding demand of Rs. 1000 due from Petitioner No. 2, raised under Section 143(1a) pertaining to the year 2019-20.	Petitioner No. 2 submits that they have discharged the liability for the outstanding dues of the sum of Rs. 1000/-, and the said payment has been made to the IT Department *vide* online transfer on 26.06.2025.A challan receipt has been issued by the IT Dept acknowledging this payment. [Copy of the challan receipt issued by the IT Dept is enclosed herewith as **Annexure B**]

9. ACCOUNTING TREATMENT

It is stated that the certificates issued by the Statutory Auditors certifying the Accounting Treatment of the petitioner companies are in compliance with Section 133 of the Companies Act, 2013 are placed on record.

10. VALUATION

In Part III, Clause 10 of the Scheme, it is stated that upon coming into effect of this Scheme and in consideration for the demerger, transfer and vesting of the Real Estate Undertaking of the Demerged Company into the Resulting Company, in terms of this Scheme, the shareholders of the Demerged Company, whose names are reflected in the Register of Members of the Demerged Company as on the Record Date, will be entitled to be allotted shares in the following manner, on the basis of the valuation report dated 02.01.2025 issued by Ganesh Natrajan, a registered

valuer holding Certificate of Practice No. IBBI/RV/06/2020/13491 and approved by the Board of both the Petitioner Companies:

"For every 1 (one) fully paid-up equity share of Rs. 100/- each, held in the Demerged Company, the shareholders of Demerged Company will be entitled to 10 (Ten) fully paid equity shares of Rs. 10/- each in the Resulting Company."

The Share Valuation Report issued by ***Ganesh Natrajan, RV No. IBBI/RV/06/2020/13491*** in respect of this Scheme has been annexed to the application from which share values are extracted as follows,

"8. SHARE EXCHANGE RATIO

8.1 The Management suggested that they desire to issue 10 (Ten) shares of Rs. 10 each fully paid up of M/s Vimra Infra Private Limited for every 1 (One) share of Rs. 100 each fully paid up of M/s. Indcon Structurals Private Limited. Accordingly, 17,39,520 shares of Rs. 10 each fully paid-up of M/s. Vimra Infra Private Limited would be issued to the shareholders of M/s. Indcon Structurals Private Limited.

8.2 Considering the fact that the shares are held by same group of shareholders in both Demerged Company and Resulting Company and that these shareholders will be receiving the shares in same proportion of their holding, the demerger of undertaking will be value-neutral to Companies and their shareholders. Therefore, the entitlement ratio in the event of demerger of demerged undertaking from M/s. Indcon Structurals Private Limited as suggested by the Management as under is fair:

In the event of demerger of Demerged Undertaking, Ten (10) equity shares of Rs.10 each fully paid up of M/s. Vimra Infra Private

Limited would be issued for every One (1) fully paid equity share of Rs. 100 each held in M/s. Indcon Structurals Private Limited."

11. OBSERVATIONS OF THIS TRIBUNAL

11.1. This Tribunal is of the view that the scheme as contemplated by the Petitioner companies seems to be *prima facie* not, in any way detrimental to the interest of the members of the Companies. In view of the absence of any material objections from any statutory authorities and since all the requisite statutory compliances have been fulfilled, this Tribunal sanctions the Scheme of Arrangement as well as the prayer made therein.

11.2. Notwithstanding the above, if there is any deficiency found or, the violation committed qua any enactment, statutory rule or regulation, the sanction granted by this Tribunal will not come in the way of action being taken, albeit, in accordance with the law, against the concerned persons, directors and officials of the petitioners.

11.3. While approving the Scheme as above, it is clarified that this order should not be construed as an order in any way granting exemption from payment of stamp duty, taxes or any other charges, if any, payment is due or required in accordance with law or in respect to any permission/ compliance with any other requirement which may be specifically required under any law.

12. THIS TRIBUNAL DO FURTHER ORDER

(i) That all properties, rights and interests of the 1st Petitioner Company shall, pursuant to Section 232(3) of the Companies Act, 2013 without further act or deed be transferred to and vest

in or be deemed to have been transferred and vested in the 2nd Petitioner Company in terms of the Scheme.

(ii) That all the liabilities, powers, engagements, obligations and duties of the 1st Petitioner Company shall pursuant to Section 232(3) of the Companies Act, 2013 without further act or deed be transferred to and vest in or be deemed to have been transferred and vested in the 2nd Petitioner Company in terms of the Scheme.

(iii) That the 'Appointed Date' for the Scheme shall be **01.12.2024** as mentioned in Part I, Clause 1(d) of the Scheme.

(iv) That the 'Effective Date' shall be defined as per the Part I, Clause 1(k) of the scheme.

(v) That the 'Record Date' for the Scheme shall be defined as per Part I, Clause 1(n)the Scheme.

(vi) That all proceedings now pending by or against the 1st Petitioner Company shall be continued by the 2nd Petitioner Company.

(vii) That all the employees/ workmen of the 1st Petitioner Company in service on the date immediately preceding the date on which the Scheme finally takes effect shall become the employees of the 2nd Petitioner Company without any break or interruption in their service with all the benefits.

(viii) That the 2nd Petitioner Company shall file the revised Memorandum and Articles of Association with the Registrar of

Companies, concerned and further make the requisite payments of the differential fee (if any) for the enhancement of authorized capital of the 2nd Petitioner Company after setting off the fees paid by the 1st Petitioner Company.

(ix) That the Petitioner Companies, shall within thirty days of the date of receipt of this order cause a certified copy of this order to be delivered to the Registrar of Companies for registration and on such certified copy being so delivered, the Registrar of Companies shall place all documents relating to the 1st Petitioner Company registered with him on the file kept by him in relation to 2nd Petitioner Company shall be consolidated accordingly.

(x) That any person interested shall be at liberty to apply to the Tribunal in the above matter for any directions that may be necessary.

13. Accordingly, the Company Petition **CP(CAA)/18(CHE)/2025** stands **Allowed** on the aforementioned terms and is disposed of.

-Sd-	**-Sd-**
RAVICHANDRAN RAMASAMY	**JYOTI KUMAR TRIPATHI**
MEMBER (TECHNICAL)	MEMBER (JUDICIAL)